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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

(Criminal Jurisdiction)

Date : 09.10.2026

PRESENT

The Hon`ble Mr.Justice K.MURALI SHANKAR

CRL OP(MD). No.23178 of 2026

Silambarasan

... Petitioner/
Accused No.1

Vs

The State of Tamil Nadu rep by
The Inspector of Police,
Natham Police Station,
Dindigul District.
(Crime No.590 of 2026)

... Respondent/
Complainant

For Petitioner : Mr.A.Vadivel,
Advocate

For Respondent : Mr.N.Balasubramanian,
Counsel for State of TN (Crl.Side)

PETITION FOR BAIL Under Section 483 of B.N.S.S.

PRAYER :-

For Bail in Crime No.590 of 2026 on the file of the Respondent Police.

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ORDER : The Court made the following order :-

The petitioner / first accused, who was arrested and remanded to judicial custody on 19.09.2026 for the offences punishable under Sections 191(2), 191(3), 296, 296(b), 115(2), 118(1), 351(3), 79 BNS and Section 92(b) of The Rights of Persons with Disabilities Act, 2016, in Crime No.590 of 2026, on the file of the respondent police, seeks bail.

2. The case of the prosecution is that on 18.09.2026, at about 06.45 p.m., the accused persons drove a Bolero pickup vehicle bearing Registration No.TN-58-1726 at high speed, with a loudspeaker and a Vinayagar idol, in such a manner that it appeared likely to collide with the children. When the defacto complainant questioned their conduct, the accused persons attacked him and abused him in filthy language. When two persons intervened, they were also attacked. Further, when the defacto complainant's mother came to intervene, the accused persons allegedly removed her saree, tore her blouse, grabbed her breasts and outraged her modesty. The petitioner

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and the seventh accused allegedly behaved in an obscene manner by exposing their private parts. They also allegedly pulled the hands of a physically challenged woman and abused members of their community in filthy language and also threatened them. Hence, the complaint.

3. The learned counsel appearing for the petitioner would submit that the petitioner is an innocent and he has not committed any offence as alleged by the prosecution, that the matter has been settled in the peace committee meeting and that the petitioner is in judicial custody from 19.09.2026.

4. The learned Counsel for State of TN (Criminal Side) appearing for the respondent police would submit that there are totally 22 accused and the petitioner is arrayed as first accused, that there existed some dispute between two community people and that except the petitioner and the seventh accused, all other accused were granted anticipatory bail by the Principal Sessions Court, Dindigul. He would

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further submit that the petitioner is not having any previous cases.

5. Considering the above facts and circumstances and also the facts that the petitioner is in judicial custody from 19.09.2026, that most of the accused were granted anticipatory bail by the Sessions Court and that the petitioner is not having any bad antecedents, this Court is inclined to grant bail to the petitioner subject to the following conditions:

6. Accordingly, the petitioner is ordered to be released on bail on his executing a bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only)** with two sureties each for a like sum to the satisfaction of the learned District Munsif cum Judicial Magistrate, Natham, Dindigul District, and on further conditions that:

(i)the sureties shall affix their photographs and left thumb impression in the surety bond and the Magistrate / concerned court may obtain a copy of their Aadhar card or Bank Pass Book to ensure their identity;

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(ii)the petitioner shall report before the respondent police daily at 10.30 a.m., for a period of one month and thereafter, as and when required for interrogation;

(iii)the petitioner shall not tamper with the evidence or witness either during investigation or trial;

(iv)the petitioner shall not abscond either during investigation or trial;

(v)On breach of any of the aforesaid conditions, the learned Magistrate / Trial Court is entitled to take appropriate action against the petitioner in accordance with law as if the conditions have been imposed and the petitioner is released on bail by the learned Magistrate / Trial Court himself as laid down by the Hon'ble Supreme Court in ***P.K.Shaji vs. State of Kerala [(2005)AIR SCW 5560];***

(vi)If the accused thereafter abscond, a fresh FIR can be registered under Section 269 BNS, 2023.

(K M S J)
09.10.2026

CSM

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K.MURALI SHANKAR,J

CSM

TO
1. The District Munsif cum Judicial Magistrate,
   Natham, Dindigul District.

2. Do through
   The Chief Judicial Magistrate,
   Dindigul.

3. The Superintendent,
   Central Prison,
   Madurai.

4. The Inspector of Police,
   Natham Police Station,
   Dindigul District.

5. The Additional Public Prosecutor,
   Madurai Bench of Madras High Court,
   Madurai.

ORDER
IN
CRL OP(MD) No.23178 of 2026

Date : 09.10.2026